

HOUSE No. 5525

The Commonwealth of Massachusetts

PRESENTED BY:

Rob Consalvo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to pension benefits for firefighter Leo J. Bracken.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>6/18/2026</i>

HOUSE No. 5525

By Representative Consalvo of Boston, a petition (accompanied by bill, House, No. 5525) of Rob Consalvo (with the approval of the mayor and city council) that the retirement board of the city of Boston be authorized to increase the disability pension of Leo J. Bracken, a firefighter of the city of Boston. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to pension benefits for firefighter Leo J. Bracken.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 7 of chapter 32 of the General Laws or any
2 other general or special law to the contrary, and in order to promote the public good, the Boston
3 retirement board shall increase the disability pension of Leo J. Bracken, a firefighter of the city
4 of Boston, who as a result of injuries sustained while in the performance of his duties on October
5 17, 2019, is totally and permanently injured and incapacitated for further service as a firefighter.

6 (b) Notwithstanding chapter 32 of the General Laws or any other general or special law
7 to the contrary, upon passage of this petition, the annual amount of pension payable to Leo J.
8 Bracken shall be equal to 100 percent of the regular rate of compensation which would have
9 been paid had he continued in service as a firefighter of the City of Boston at the grade held by
10 him at the time of his retirement until his death or reaching mandatory retirement age, whichever
11 comes first. All amounts paid under this act shall be non-taxable to the extent allowable under
12 state and federal law.

13 (c) Notwithstanding section 91A of chapter 32 of the General Laws or any other general
14 or special law to the contrary, Leo J. Bracken's annual earnings, when added to his retirement
15 allowance, may annually earn up to 1/2 the amount of his retirement allowance without refund
16 penalty.

17 (d) Notwithstanding any general or special law to the contrary, the benefits granted herein
18 shall be funded and administered by the Boston retirement board, consistent with and subject to
19 chapter 32 of the General Laws.

20 SECTION 2. Leo J. Bracken shall be entitled to receive indemnification for all hospital,
21 medical and related expenses that have been, or may be incurred after the date of his retirement
22 as a result of the injuries sustained by him while in the performance of his duties on October 17,
23 2019, in accordance with sections 100 and 100B of chapter 41 of the General Laws.

24 SECTION 3. Notwithstanding any general or special law to the contrary, the Boston
25 retirement board shall forthwith pay to said Leo J. Bracken the amount credited to him as
26 accumulated total deductions in the annuity savings fund of the Boston retirement board as of the
27 effective date of this act.

28 SECTION 4. Notwithstanding any general or special law to the contrary, if Leo J.
29 Bracken was married upon retirement, upon his death, if he is still married to the spouse to
30 whom he was married to upon retirement then, should his spouse to whom he was married on the
31 date of retirement survive him, the Boston retirement board shall pay to the spouse an annuity in
32 the amount of 75 per cent of the amount of the pension which otherwise would have been
33 payable to Leo J. Bracken until his spouse's death. The pension benefits provided for in this
34 section and section 1 shall be subject to section 103 of chapter 32 of the General Laws.

SECTION 5. This act shall take effect upon its passage.